

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Kishoregonj

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং

Md. Tulu Miah

আবেদনকারী

মাধ্যম

Mr. Mohammad Rezaul Karim Mollah, Advocate

বনাম

The State

Ms. Shiuli Khanom, D.A.G along with

Mr. S.M. Emamul Musfiqur, A.A.G

Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 67 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 67 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 09.07.2024 passed by the learned Additional Sessions Judge, 3rd Court, Kishoregonj in Criminal Appeal No. 79 of 2024 dismissing the appeal and thereby affirming the judgment and order of conviction dated 21.01.2024 passed by the learned Chief Judicial Magistrate, Kishoregonj in C.J.M. Case No. 3039 of 2019 corresponding to G.R. Case No. 63(2) of 2019 arising out of Bajitpur Police Station Case No. 26 dated 19.01.2019 convicting the convict petitioner under section 326 of the Penal Code and thereby modifying the sentence to suffer rigorous imprisonment for 02 (two) years and also pay fine of Tk. 5,000/- (five thousand)) in default to suffer simple imprisonment of 03 (three) months more from to suffer rigorous imprisonment for 05(five) years and to pay a fine of Tk. 5,000/- (five thousand) in default to suffer simple imprisonment of 01 (one) months should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশৰ ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Tulu Miah, son of Shukkur Ali be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Kishoregonj. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o